

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE SUBMITTING TO THE QUALIFIED PROPERTY OWNERS OF REAL PROPERTY WITHIN THE BOUNDARIES OF THE CHEYENNE DOWNTOWN DEVELOPMENT AUTHORITY DISTRICT OF CHEYENNE, WYOMING, EXCLUDING REAL PROPERTY USED EXCLUSIVELY FOR RESIDENTIAL PURPOSES, AT A SPECIAL ELECTION ON TUESDAY, OCTOBER 20, 2015, THE FOLLOWING QUESTION: 'SHALL A SPECIAL ASSESSMENT OF TWENTY (20) MILLS BE LEVIED UPON THE ASSESSED VALUE OF REAL PROPERTY WITHIN THE BOUNDARIES OF THE CHEYENNE DOWNTOWN DEVELOPMENT AUTHORITY DISTRICT, EXCLUDING REAL PROPERTY USED EXCLUSIVELY FOR RESIDENTIAL PURPOSES, FOR A PERIOD OF FOUR (4) YEARS PURSUANT TO THE PROVISIONS OF WYO. STAT. § 15-9-217(b) FOR THE PURPOSES OF (1) ADMINISTRATIVE COSTS; (2) LANDSCAPING OR MAINTENANCE OF PUBLIC AREAS; (3) PLANNING OR MANAGEMENT OF DEVELOPMENT OR IMPROVEMENT ACTIVITIES; (4) PROMOTION OF PUBLIC EVENTS; AND (5) ACTIVITIES IN SUPPORT OF BUSINESS RECRUITMENT AND DEVELOPMENT?'. "

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the Governing Body of the City of Cheyenne, Wyoming, by Resolution No. 5696 adopted July 27, 2015, has authorized the holding of a special election as provided by Wyo. Stat. § 15-9-217 (b), which, by a majority of persons voting in the election, will authorize a special assessment of twenty (20) mills against the assessed value of real property within the boundaries of the Cheyenne Downtown Development Authority District, Cheyenne, Wyoming, excluding real property used exclusively for residential purposes; and

Section 2. That the special assessment will expire in four (4) years from the effective date of the assessment unless re-authorized by the governing body and a majority of persons voting in the election, owning certain real property within the District, at a subsequent election. The assessment will be levied and collected in the same manner as the general property tax levy for the municipality.

Section 3. That the established boundaries of the Cheyenne Downtown Development Authority District are as follows:

Northern Portion:

Commencing at a point described as the intersection of the west right-of-way of House Avenue and the south right-of-way of 22nd Street; thence in a southwesterly direction along the south right-of-way line to a point intersecting with the east right-of-way of Snyder Avenue; thence in a southeasterly direction along the east right-of-way line and along the extension of that line to a point which intersects with a line that is 17.2 feet parallel to the center line of the northern most rail of the Union Pacific Railroad; thence in a northeasterly direction along said parallel line to a point intersecting with the extension of the west right-of-way line of House Avenue; thence in a

northwesterly direction along the west right-of-way line of House Avenue to the point of beginning.

Southern Portion:

Commencing at a point described as the intersection of the west right-of-way line of Central Avenue and the south right-of-way line of 11th Street; thence southwesterly along the south right-of-way of 11th Street to a point intersecting the east right-of-way line of Capitol Avenue; thence southeasterly along the east right-of-way line and that line extends to a point intersecting the constructed center line of Deming Drive; thence southeasterly along the center line of Deming Drive to the extension of the right-of-way line of Central Avenue; thence northwesterly along the west right-of-way line of Central Avenue to the point of beginning.

Section 4. That at a special election to be held in Cheyenne, Wyoming on Tuesday, October 20, 2015 there will be submitted to the qualified electors owning certain real property within the boundaries of the Cheyenne Downtown Development Authority District, the question of authorizing a special assessment of twenty (20) mills to be levied as more particularly set forth in the Proclamation and Notice of Election.

Section 5. That the Cheyenne Downtown Development Authority District will be considered as one election precinct for the special election on the question of authorizing a special assessment of twenty (20) mills, and the sole voting site will be located in the lobby of the Historic Union Pacific Depot Building, 121 West 15th St. On the day of the election the polling place will open at 9:00 a.m. and will remain open continuously until 3:00 p.m. at which time the polling place will be closed.

Section 6. That qualified electors as outlined in the Proclamation and Notice of Election will be entitled to vote on the question in person or by absentee ballot as provided by special election procedures and guidelines as adopted by the governing body. A qualified elector includes persons owning real property within the Cheyenne Downtown Development Authority District, excluding real property used exclusively for residential purposes, or those persons obligated for the payment of general property taxes for said property within the District pursuant to property tax notices issued by the Laramie County Assessor or the Wyoming Department of Revenue.

The Cheyenne Downtown Development Authority shall request the Laramie County Assessor to compile a list of qualified property owners, or those persons obligated for the payment of general property taxes for the properties affected by the assessment, and provide the same to the City Clerk for purposes of compiling a list of qualified electors.

Absentee voting on the question is permitted as hereinafter provided for in the Proclamation and Notice of Election.

Section 7. That paper ballots will be used for voting, including absentee voting, and tabulating of votes cast “for” and “against” the ballot question. The ballots will set forth the following question:

"SHALL A SPECIAL ASSESSMENT OF TWENTY (20) MILLS BE LEVIED UPON THE ASSESSED VALUE OF REAL PROPERTY WITHIN THE BOUNDARIES OF THE CHEYENNE DOWNTOWN DEVELOPMENT AUTHORITY DISTRICT, EXCLUDING REAL PROPERTY USED EXCLUSIVELY FOR RESIDENTIAL PURPOSES, FOR A PERIOD OF FOUR (4) YEARS PURSUANT TO THE PROVISIONS OF WYO. STAT. § 15-9-217(b) FOR THE PURPOSES OF (1) ADMINISTRATIVE COSTS; (2) LANDSCAPING OR MAINTENANCE OF PUBLIC AREAS; (3) PLANNING OR MANAGEMENT OF DEVELOPMENT OR IMPROVEMENT ACTIVITIES; (4) PROMOTION OF PUBLIC EVENTS; AND (5) ACTIVITIES IN SUPPORT OF BUSINESS RECRUITMENT AND DEVELOPMENT?"

The paper ballots will be marked by the voter to record either "for" or "against" the ballot question. Paper ballots and absentee paper ballots will be tabulated by manual count by the Canvassing Board following closure of the polling place.

Section 8. That approval of this ordinance shall be not more than forty-five (45) nor less than thirty (30) days before the date of the election. In addition to publication of the ordinance, including a map of the District boundaries, the City Clerk will cause the Proclamation and Notice of Election and Public Notice of Elector Qualifications portion of the ordinance, including a map of the District, to be published twice in a newspaper of general circulation within the City prior to the election date. The Proclamation and Notice shall specify the name of the City, the date, time and place of election, the purpose of the election and the fact that only qualified electors will be permitted to vote thereon. The Proclamation and Notice of Election and Public Notice of Elector Qualifications, including an Affidavit and Qualification of Elector form, will be in substantially the following form:

**PROCLAMATION AND NOTICE OF SPECIAL
CHEYENNE DOWNTOWN DEVELOPMENT AUTHORITY DISTRICT ELECTION**
City of Cheyenne, Wyoming

PUBLIC NOTICE IS HEREBY GIVEN that the Governing Body of the City of Cheyenne, Wyoming, has approved Ordinance No. _____, the title of which Ordinance is as follows:

ORDINANCE NO. _____

"AN ORDINANCE SUBMITTING TO THE QUALIFIED PROPERTY OWNERS OF REAL PROPERTY WITHIN THE BOUNDARIES OF THE CHEYENNE DOWNTOWN DEVELOPMENT AUTHORITY DISTRICT OF CHEYENNE, WYOMING, EXCLUDING REAL PROPERTY USED EXCLUSIVELY FOR RESIDENTIAL PURPOSES, AT A SPECIAL ELECTION ON TUESDAY, OCTOBER 20, 2015, THE FOLLOWING QUESTION: 'SHALL A SPECIAL ASSESSMENT OF TWENTY (20) MILLS BE LEVIED UPON THE ASSESSED VALUE OF REAL PROPERTY WITHIN THE BOUNDARIES OF THE CHEYENNE DOWNTOWN DEVELOPMENT AUTHORITY DISTRICT, EXCLUDING REAL PROPERTY USED EXCLUSIVELY FOR RESIDENTIAL PURPOSES, FOR A PERIOD OF FOUR (4) YEARS PURSUANT TO THE PROVISIONS OF WYO. STAT. § 15-9-217(b) FOR THE PURPOSES OF (1) ADMINISTRATIVE COSTS; (2) LANDSCAPING OR MAINTENANCE OF PUBLIC AREAS; (3) PLANNING OR MANAGEMENT OF DEVELOPMENT OR IMPROVEMENT ACTIVITIES;

(4) PROMOTION OF PUBLIC EVENTS; AND (5) ACTIVITIES IN SUPPORT OF BUSINESS RECRUITMENT AND DEVELOPMENT??"

PUBLIC NOTICE IS HEREBY GIVEN that at a special election to be held on Tuesday, October 20, 2015 between the hours of 9:00 a.m. and 3:00 p.m., there will be submitted to qualified electors the following question:

"SHALL A SPECIAL ASSESSMENT OF TWENTY (20) MILLS BE LEVIED UPON THE ASSESSED VALUE OF REAL PROPERTY WITHIN THE BOUNDARIES OF THE CHEYENNE DOWNTOWN DEVELOPMENT AUTHORITY DISTRICT, EXCLUDING REAL PROPERTY USED EXCLUSIVELY FOR RESIDENTIAL PURPOSES, FOR A PERIOD OF FOUR (4) YEARS PURSUANT TO THE PROVISIONS OF WYO. STAT. § 15-9-217(b) FOR THE PURPOSES OF (1) ADMINISTRATIVE COSTS; (2) LANDSCAPING OR MAINTENANCE OF PUBLIC AREAS; (3) PLANNING OR MANAGEMENT OF DEVELOPMENT OR IMPROVEMENT ACTIVITIES; (4) PROMOTION OF PUBLIC EVENTS; AND (5) ACTIVITIES IN SUPPORT OF BUSINESS RECRUITMENT AND DEVELOPMENT?"

The sole Election Polling Place shall be as follows:

Lobby of the Historic Union Pacific Depot Building
121 West 15th St.
Cheyenne, Wyoming

Any qualified elector will be entitled to vote on the election question in person or by absentee ballot as provided in procedures and guidelines for the special election adopted by the governing body. Qualified electors for this election are persons owning real property within the Cheyenne Downtown Development Authority District, excluding real property used exclusively for residential purposes, or those persons obligated to pay property taxes on the property within the District affected by the assessment per property tax notices issued by the Laramie County Assessor or the Wyoming Department of Revenue (District boundary map on file with City Clerk's office).

One vote shall be allocated to each property that receives a separately issued property tax assessment notice from the Laramie County Assessor or the Wyoming Department of Revenue. The owner or owners of each separately assessed parcel of non-residential real property within the boundaries of the Cheyenne Downtown Development Authority District shall designate one representative to cast the vote allocated to that parcel.

Votes cast on election day will be tabulated, following closure of the polling place, manually by the Canvassing Board at the polling place. The ballots will contain the same question as stated above, and a paper ballot will be provided to permit the elector to indicate his or her vote of "for" or "against" the question. Absentee paper ballots will be tabulated, following closure of the polling place, manually by the Canvassing Board and ballots will contain the same question as stated above.

Any qualified elector who will be absent on election day, or who can not be present at the polling place on election day, may vote by absentee ballot upon making application in person, in

writing, or by telephone, to the City Clerk's Office, 2101 O'Neil Ave., Room 101, Cheyenne, WY 82001 for an absentee ballot, and by furnishing the following information:

Name in full, name in which the property is held and how applicant is associated with the entity; the election for which an absentee ballot is requested; the location of property within the boundaries of the Cheyenne Downtown Development Authority District which is owned by the elector; and, if not obtained in person, the address to which the absentee ballot is to be mailed.

Request for a ballot may be made on behalf of an absentee qualified elector if the prescribed information is furnished. Such absentee voter will be entitled to vote upon executing an affidavit, indicating the applicant is entitled to vote in the election, which will be printed on the reverse side of the inner ballot envelope to be returned to the City Clerk.

Request for absentee ballot must be made not later than the close of business on the day prior to the election. All absentee ballots must be received in the City Clerk's Office by 3:00 p.m. on the day of the election to be counted.

IN WITNESS WHEREOF, the Governing Body of the City of Cheyenne, Wyoming, has caused this Proclamation and Notice of Special Cheyenne Downtown Development Authority District Election to be given by the City Clerk as of the ____ day of _____, 2015.

Carol Intlekofer, City Clerk

PUBLISHED: WYOMING TRIBUNE-EAGLE
PUBLICATION DATE:

**PUBLIC NOTICE OF ELECTOR QUALIFICATIONS
FOR CHEYENNE DOWNTOWN DEVELOPMENT AUTHORITY
DISTRICT SPECIAL ELECTION
City of Cheyenne, Wyoming**

PUBLIC NOTICE IS HEREBY GIVEN that the list of qualified electors, who are eligible to cast their ballot at the District's special election to be held in Cheyenne, Wyoming on Tuesday, October 20, 2015, will be those persons owning real property within the Cheyenne Downtown Development Authority District, excluding real property used exclusively for residential purposes, or those persons obligated for the payment of property taxes for the property affected by the assessment within the District as provided by property tax assessment notification as issued by the Laramie County Assessor or the Wyoming Department of Revenue.

Any qualified elector whose name does not appear on the list provided by the Laramie County Assessor may vote either in person or by absentee ballot by furnishing his or her qualifications to the City Clerk (if voting by absentee ballot) or to the election judges at the polling site on the day of the election by execution of an Affidavit and Qualification of Elector in substantially the following form:

STATE OF WYOMING)
)
COUNTY OF LARAMIE) **AFFIDAVIT**
) **AND**
) **QUALIFICATION OF ELECTOR**
CITY OF CHEYENNE)

COMES NOW, _____, having appeared at the CHEYENNE DOWNTOWN DEVELOPMENT AUTHORITY DISTRICT SPECIAL ELECTION and desiring to vote at said election and being a bona fide property owner of real property not used exclusively for residential purposes within said District, or the person obligated to pay property taxes for the property affected by the assessment within the District as provided by property tax assessment notice as issued by the Laramie County Assessor or the Wyoming Department of Revenue, hereby states the following:

____ 1. That I am an owner of real property not used exclusively for residential purposes located within the Authority District;

OR

____ 2. I am not the owner, however I am legally obligated for the payment of property taxes for real property not used exclusively for residential purposes located within the District affected by this assessment and receive property tax assessment notices as issued by the Laramie County Assessor or the Wyoming Department of Revenue.

I hereby swear (or affirm), under penalty of perjury, that I have the authority to vote in this election and that the above information is true and correct.

DATE OF ELECTION: October 20, 2015

SIGNATURE DATE

ELECTOR

LOCATION OF PROPERTY WITHIN DISTRICT

JUDGE OF ELECTION

Given by order of the City Clerk of the City of Cheyenne, Wyoming.

Carol Intlekofer, City Clerk

PUBLISHED: WYOMING TRIBUNE-EAGLE

PUBLICATION DATE:

Section 9. That immediately following closure of the polling place, the Canvassing Board will proceed to tabulate and canvass the votes cast on the ballot question. The results disclosed by the canvassing of votes will be certified by the Canvassing Board to the City Clerk. The Governing Body of the City of Cheyenne will review the Canvassing Board results and officially declare the result of the election by adoption of a resolution at a meeting open to the public.

If the majority of votes cast on the ballot question is in favor of the special assessment, the question will have carried and the governing body, in the manner provided by law, will then proceed to declare the results of the special election to the Laramie County Assessor to allow for the special assessments to be levied and collected in the same manner as the general property tax levy for the municipality.

Section 10. That the election will be held, conducted and the results tabulated and canvassed as set forth in this ordinance and election procedures and guidelines as approved by resolution by the governing body.

Section 11. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

(SEAL)

RICHARD L. KAYSEN, MAYOR

ATTEST:

CAROL INTLEKOFER, CITY CLERK

PUBLISHED: Wyoming Tribune Eagle